



Bill Number: S.B. 1855

Farnsworth Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Extends the increase of relocation expenses that a tenant may receive from the Mobile Home Relocation Fund and expansion of permissible uses of relocation expenses to apply to all tenants eligible to receive relocation expenses, rather than only tenants who are eligible due to an increase in rent.
2. Allows, until July 1, 2027, monies allocated from the Out-of-School Time Grant Program to be used to support partnerships between school districts and nonprofit organizations with a history of offering out-of-school time care services to eligible pupils, as specified.

FARNSWORTH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1855
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 33-1476.01, Arizona Revised Statutes, is
3 amended to read:

4 33-1476.01. Change in use; notices; compensation for moving
5 expenses; payments by the landlord;
6 applicability

7 A. The landlord shall notify the director and all tenants in
8 writing of a change in use at least one hundred eighty days before the
9 change in use. The landlord may not increase rent within ninety days
10 before giving notice of a change in use.

11 B. The landlord shall inform all tenants in writing about the
12 mobile home relocation fund established by section 33-1476.02.

13 C. If a tenant is required to move due to a change in use or
14 redevelopment of the mobile home park, the tenant may do any of the
15 following:

16 1. Collect payment from the ~~[mobile home relocation]~~ fund for the
17 lesser of the actual moving expenses of relocating the mobile home to a
18 new location that is within ~~[a one hundred-mile radius of the vacated~~
19 ~~mobile home park]~~ [THIS STATE] or the maximum of ~~[\$12,500]~~ [\$22,500] for a
20 ~~[single section]~~ [SINGLE-SECTION] mobile home or ~~[\$20,000]~~ [\$30,000] for a
21 multisection mobile home. Moving expenses include the cost of
22 stabilizing, taking down, moving and setting up the mobile home in the new
23 location.

24 2. Abandon the mobile home in the mobile home park and collect an
25 amount equal to forty percent of the maximum allowable moving expense for
26 that mobile home from the ~~[mobile home relocation]~~ fund. To qualify for
27 abandonment payment pursuant to this paragraph, the tenant shall deliver
28 to the landlord the current title to the mobile home with the notarized

1 endorsement of the owner of record together with complete releases of all
2 liens that are shown on the title and proof that all taxes owing on the
3 mobile home have been paid to date. The tenant shall provide a copy of
4 these documents to the Arizona department of housing in support of the
5 tenant's application for payment. If the tenant chooses to abandon the
6 mobile home pursuant to this paragraph, the landlord is exempt from making
7 the payments to the fund prescribed in subsection D of this section.

8 3. If a mobile home is relocated to a location outside of the
9 vacated mobile home park and, in the sole judgment of the director, the
10 mobile home was ground set in the mobile home park from which it was
11 removed, the tenant may collect additional monies not to exceed \$2,500 for
12 the incremental costs of removing a ground-set mobile home. These monies
13 are in addition to any monies provided pursuant to paragraph 1 of this
14 subsection.

15 D. Except as provided in subsection C, paragraph 2 and subsection F
16 of this section and section 33-1476.04, subsection D, if there is a change
17 in use the landlord shall pay \$500 for each ~~[single section]~~
18 ~~[SINGLE-SECTION]~~ mobile home and \$800 for each multisection mobile home
19 relocated to the fund for each tenant filing for relocation assistance
20 with the director.

21 E. If a change in use occurs before the time stated in the
22 statements of policy and the landlord does not comply with subsection A of
23 this section~~[.]~~ ~~[and with]~~ section 33-1436 and section 33-1476, subsection
24 H, the landlord shall pay to the fund in addition to the monies prescribed
25 in subsection D of this section:

26 1. \$500 for each mobile home space occupied by a single-section
27 mobile home.

28 2. \$800 for each mobile home space occupied by a multisection
29 mobile home.

30 F. The landlord is not required to make the payments prescribed in
31 subsections D and E of this section for moving mobile homes owned by the
32 landlord or for moving a mobile home under a contract with the tenant if
33 the tenant does not file for relocation assistance with the director.

34 G. If a change in use occurs within two hundred seventy days after
35 relocations under section 33-1476.04, the landlord shall pay to the fund
36 in addition to the monies prescribed in subsection D of this section:

37 1. \$500 for each mobile home space occupied by a single section
38 mobile home.

39 2. \$800 for each mobile home space occupied by a multisection
40 mobile home.

41 H. The tenant shall submit a contract for relocation of a mobile
42 home for approval to the director within sixty days after the relocation
43 to be eligible for payment of relocation expenses. The director must
44 approve or disapprove the contract within fifteen days after receipt of
45 the contract, or the contract is deemed to be approved.

46 I. If the contract is approved, the payment of relocation expenses
47 shall be made to the installer when both of the following are complete:

1 1. The installer obtains valid permits to move the mobile or
2 manufactured home to a new location.

3 2. The installer provides documentation to the department that the
4 installation of the mobile or manufactured home at the new location is
5 complete and has been inspected by the department or its designee and is
6 approved for occupancy.

7 J. If the contract is not approved, the tenant may appeal to an
8 administrative law judge pursuant to title 41, chapter 37, article 5. The
9 tenant shall provide notice pursuant to section 33-1451, subsection A,
10 paragraph 6 if the tenant relocates.

11 K. If this state or a political subdivision of this state exercises
12 eminent domain and the mobile home park is sold or a sale is made to this
13 state or a political subdivision of this state that intends to exercise
14 eminent domain, the state or political subdivision is responsible for the
15 relocation costs of the tenants.

16 L. If a tenant is vacating the premises and has informed the
17 landlord or manager before the change-in-use notice has been given, the
18 tenant is not eligible for compensation under this section.

19 M. A person who purchases a mobile home already situated in a park
20 or moves a mobile home into a park in which a change-in-use notice has
21 been given is not eligible for compensation under this section.

22 N. After delivery of the one hundred eighty-day notice prescribed
23 by subsection A of this section, the landlord and the tenants shall inform
24 any prospective buyer or tenant that closure of the park is pending.

25 O. This section does not apply to a change in use if the landlord
26 moves a tenant to another space in the mobile home park at the landlord's
27 expense.>>

28 Sec. 2. Section 33-1476.04, Arizona Revised Statutes, is amended to
29 read:

30 33-1476.04. Relocations due to rent increase; mobile home
31 relocation fund; applicability

32 A. A tenant is eligible for payment from the ~~mobile home relocation~~
33 fund if all of the following conditions are met:

34 1. The tenant resides in a mobile home that is owned by the tenant
35 and that is located in a mobile home park.

36 2. A rent increase will be effective at the expiration or renewal
37 of the tenant's rental agreement.

38 3. The rent increase either singly or in combination during any
39 consecutive twelve-month period is more than a total of ten percent plus
40 the current increase in the consumer price index over the most recent
41 one-year period before the date of the notice of the rent increase. For
42 the purposes of this paragraph, "consumer price index" means the "west-A"
43 index that is published by the United States department of labor, bureau
44 of labor statistics, and that demonstrates changes in prices in certain
45 cities in the western United States.

1 B. A landlord who increases rent as prescribed by subsection A of
2 this section shall give written notice of the applicability of this
3 section to all affected tenants.

4 C. A tenant is eligible to receive relocation expenses pursuant to
5 subsection A of this section as follows:

6 1. At least thirty days before the effective date of the rent
7 increase that exceeds the limits prescribed by subsection A of this
8 section, the tenant shall submit a contract for relocation of the mobile
9 home to the director for approval and to the landlord.

10 2. Before the effective date of the rent increase, the tenant shall
11 have a fully signed contract with a licensed installer or contractor to
12 move the mobile home to a specific location.

13 3. The director shall approve or disapprove the contract submitted
14 within fifteen days after receipt of the contract, and the contract is
15 deemed to be approved on the sixteenth day if the director takes no
16 action.

17 4. If the contract is approved, the payment of relocation expenses
18 shall be made to the installer or contractor when both of the following
19 are complete:

20 (a) The installer or contractor obtains valid permits to move the
21 mobile HOME or manufactured home to a new location.

22 (b) The installer or contractor provides documentation to the
23 department that the installation of the mobile HOME or manufactured home
24 at the new location is complete and has been inspected by the department
25 or its designee and is approved for occupancy.

26 5. If the contract is not approved, the tenant may appeal to an
27 administrative law judge pursuant to title 41, chapter 37, article 5. The
28 tenant shall provide notice pursuant to section 33-1451, subsection A,
29 paragraph 6 if the tenant relocates.

30 6. On approval, the tenant is eligible for the lesser of the actual
31 moving expenses of relocating the mobile home or ~~\$12,500~~ \$22,500 for a
32 single-section mobile home or ~~\$20,000~~ \$30,000 for a multisection mobile
33 home. Compensable moving expenses include the cost of taking down, moving
34 and setting up the mobile home in the new location if the mobile home is
35 relocated to a residential location within ~~a one hundred-mile radius of~~
36 ~~the vacated mobile home park~~ THIS STATE.

37 D. As an alternative to receiving payment as prescribed in
38 subsection C of this section, a tenant who is eligible to receive payment
39 pursuant to subsection A of this section may abandon the mobile home in
40 the mobile home park and collect an amount equal to forty percent of the
41 maximum allowable moving expense for that mobile home from the ~~mobile home~~
42 ~~relocation~~ fund. To qualify for an abandonment payment pursuant to this
43 subsection, the tenant shall deliver to the landlord the current title to
44 the mobile home with the notarized endorsement of the owner of record
45 together with complete releases of all liens that are shown on the title
46 and proof that all taxes owing on the mobile home have been paid to date.
47 The tenant shall provide a copy of these documents to the Arizona

1 department of housing in support of the tenant's application for payment.
2 If the tenant chooses to abandon the mobile home pursuant to this
3 subsection, the landlord is exempt from making the payments to the fund
4 prescribed in section 33-1476.01, subsection D.

5 E. This section does not apply to rent increases that are
6 prescribed in a written rental agreement.

7 F. This section does not make any rent increase unreasonable.

8 <<Sec. 3. Section 33-1476.05, Arizona Revised Statutes, is amended
9 to read:

10 33-1476.05. Relocations due to change in age-restricted
11 community use; payment from mobile home
12 relocation fund; applicability

13 A. The landlord shall notify the director and all tenants in
14 writing of a change in use at least sixty days before a change in the
15 age-restricted community to an all-age community use as defined by the
16 housing for older persons act of 1995.

17 B. A tenant is eligible for payment from the ~~[mobile home~~
18 ~~relocation]~~ fund if both of the following conditions are met:

19 1. The tenant resides in a mobile home or manufactured home that is
20 owned by the tenant and that is located in an age-restricted mobile home
21 park.

22 2. The landlord implements a change from an age-restricted
23 community to an all-age community as defined by the housing for older
24 persons act of 1995.

25 C. A landlord who changes a mobile home park designation from an
26 age-restricted community shall give written notice of the applicability of
27 this section to all affected tenants.

28 D. A tenant is eligible to receive relocation expenses pursuant to
29 subsection B of this section as follows:

30 1. Within one hundred eighty days after the effective date of
31 notification of the change in the age-restricted community's use, the
32 tenant shall submit a contract for relocation of the mobile ~~[HOME]~~ or
33 manufactured home to the director for approval and to the landlord.

34 2. After notice of approval by the director for the payment of
35 relocation expenses, the tenant shall have a fully signed contract with a
36 licensed installer or contractor to move the mobile ~~[HOME]~~ or manufactured
37 home to a specific location.

38 3. The director shall approve or disapprove the contract submitted
39 within fifteen days after receipt of the contract, and the contract is
40 deemed to be approved on the sixteenth day if the director takes no
41 action.

42 4. If the contract is approved, the payment of relocation expenses
43 shall be made to the installer or contractor when both of the following
44 are complete:

45 (a) The installer or contractor obtains valid permits to move the
46 mobile ~~[HOME]~~ or manufactured home to a new location.

1 (b) The installer or contractor provides documentation to the
2 department that the installation of the mobile [HOME] or manufactured home
3 at the new location is complete and has been inspected by the department
4 or its designee and is approved for occupancy.

5 5. If the contract is not approved, the tenant may appeal to an
6 administrative law judge pursuant to title 41, chapter 37, article 5. The
7 tenant shall provide notice pursuant to section 33-1451, subsection A,
8 paragraph 6 if the tenant relocates.

9 6. On approval, the tenant is eligible for the lesser of the actual
10 moving expenses of relocating the mobile home or [~~\$12,500~~] [\$22,500] for a
11 single-section mobile home or [~~\$20,000~~] [\$30,000] for a multisection
12 mobile home. Compensable moving expenses include the cost of taking down,
13 moving and setting up the mobile home in the new location if the mobile
14 home is relocated to another age-restricted community within [~~a one~~
15 ~~hundred-mile radius of the vacated mobile home park~~] [THIS STATE].

16 E. The landlord shall not be responsible for making any payment
17 into the [~~mobile home relocation~~] fund for any mobile or manufactured home
18 moved pursuant to this section.>>

19 Sec. 4. Section 41-608.04, Arizona Revised Statutes, is amended to
20 read:

21 41-608.04. Military family relief fund: subaccounts: advisory
22 committees: definitions

23 A. The military family relief fund is established through
24 December 31, ~~2026~~ 2031. The fund consists of private donations, grants,
25 bequests and any other monies received for that purpose.

26 B. The pre-9/11 veterans subaccount and post-9/11 veterans
27 subaccount of the military family relief fund are established. The
28 department shall administer the fund and subaccounts. On notice from the
29 director, the state treasurer shall invest and divest monies in the
30 subaccounts as provided by section 35-313, and monies earned from
31 investment shall be credited to the subaccounts. The monies in the
32 subaccounts are continuously appropriated to the department solely for the
33 purposes described in this section. Any monies remaining unexpended and
34 unencumbered on December 31, ~~2026~~ 2031 shall be transferred for deposit in
35 the veterans' donations fund established by section 41-608.

36 C. The post-9/11 military family relief advisory committee is
37 established to determine appropriate uses of the monies in the post-9/11
38 veterans subaccount as provided by this section. The post-9/11 military
39 family relief advisory committee consists of the director or the
40 director's designee and twelve additional members, including widows and
41 widowers of military personnel who died in the line of duty, military
42 retirees, veterans who have a service-connected disability and their
43 family members, Arizona army and air national guard unit commanders and
44 active and retired senior enlisted military personnel. Except for the
45 director, the governor shall appoint the members based on recommendations
46 by the director, the adjutant general and commanders of military bases in
47 this state. Appointed members serve at the pleasure of the governor. The

1 post-9/11 military family relief advisory committee shall elect a
2 chairperson from among the appointed members.

3 D. The post-9/11 military family relief advisory committee shall:

4 1. Establish criteria for the use of monies in the post-9/11
5 veterans subaccount.

6 2. Establish and revise as necessary the application process for
7 financial assistance.

8 3. Review and evaluate applications.

9 4. Make other recommendations as necessary.

10 E. The pre-9/11 military family relief advisory committee is
11 established to determine appropriate uses of the monies in the pre-9/11
12 veterans subaccount as provided by this section. The pre-9/11 military
13 family relief advisory committee consists of the director or the
14 director's designee and twelve additional members, including widows and
15 widowers of military personnel who died in the line of duty, military
16 retirees, veterans who have a service-connected disability and their
17 family members, Arizona army and air national guard unit commanders and
18 active and retired senior enlisted military personnel. Except for the
19 director, the governor shall appoint the members based on recommendations
20 by the director, the adjutant general and commanders of military bases in
21 this state. Appointed members serve at the pleasure of the governor. The
22 pre-9/11 military family relief advisory committee shall elect a
23 chairperson from among the appointed members.

24 F. The pre-9/11 military family relief advisory committee shall:

25 1. Establish criteria for the use of monies in the pre-9/11
26 veterans subaccount.

27 2. Establish and revise as necessary the application process for
28 financial assistance.

29 3. Review and evaluate applications.

30 4. Make other recommendations as necessary.

31 G. The advisory committees may establish subcommittees, consisting
32 of not more than five members of the full committees, to recommend
33 approval of a grant to an applicant of not more than \$3,000.

34 H. Notwithstanding section 38-431.03, the subcommittees may meet in
35 executive session without advance notice. The full advisory committees
36 may meet in executive session, with notice pursuant to section 38-431.02,
37 to review and evaluate applications or review recommendations of the
38 subcommittees. Applications for financial assistance and all committee
39 considerations and evaluations of the applications are confidential.

40 I. The monies in the post-9/11 veterans subaccount shall be used to
41 provide financial assistance pursuant to this subsection. The service
42 member of an applying family must have been deceased, wounded or injured
43 or become seriously ill after September 11, 2001 and been deployed from a
44 military base in this state after September 11, 2001, claimed this state
45 as the service member's home of record, been a member of the Arizona
46 national guard at the time of deployment or established residency in this
47 state and be able to provide proof of continuous physical presence in this

1 state for at least twelve months before submitting an application. If
2 discharged from military service, the service member must have been
3 discharged under honorable conditions. The assistance shall be based on
4 financial need as a result of the service member's military service up to
5 \$20,000 per family. Eligible assistance is as follows:

6 1. Widows, widowers or dependent children of service members who
7 died in the line of duty in a combat zone or a zone where the person was
8 receiving hazardous duty pay may apply for a stipend for living expenses
9 for up to six months. For the purposes of the stipend, qualifying living
10 expenses are residential mortgage, rent and utility payments and other
11 basic living expenses. Payments with respect to any deceased person under
12 this paragraph are limited to a total of \$20,000.

13 2. An immediate family member may apply for payment of costs of
14 temporary residence near the medical facility where the service member or
15 former service member is being treated, including living, travel and
16 housing expenses. Payments may be payable in monthly installments as long
17 as the person is hospitalized or receiving medical care or rehabilitation
18 services as authorized by military or veterans' medical personnel.

19 3. An immediate family member, service member or former service
20 member may apply for:

21 (a) Living expenses.

22 (b) Other appropriate expenses as determined by the post-9/11
23 military family relief advisory committee.

24 J. The monies in the pre-9/11 veterans subaccount shall be used to
25 provide financial assistance pursuant to this subsection. The service
26 member of an applying family must have been deceased, wounded or injured
27 or become seriously ill on or before September 11, 2001 and been deployed
28 from a military base in this state on or before September 11, 2001,
29 claimed this state as the service member's home of record, been a member
30 of the Arizona national guard at the time of deployment or established
31 residency in this state and be able to provide proof of continuous
32 physical presence in this state for at least twelve months before
33 submitting an application. If discharged from military service, the
34 service member must have been discharged under honorable conditions. The
35 assistance shall be based on financial need as a result of the service
36 member's military service up to \$20,000 per family. Eligible assistance
37 is as follows:

38 1. Widows, widowers or dependent children of service members who
39 died in the line of duty in a combat zone or a zone where the person was
40 receiving hazardous duty pay may apply for a stipend for living expenses
41 for up to six months. For the purposes of the stipend, qualifying living
42 expenses are residential mortgage, rent and utility payments and other
43 basic living expenses. Payments with respect to any deceased person under
44 this paragraph are limited to a total of \$20,000.

45 2. An immediate family member may apply for payment of costs of
46 temporary residence near the medical facility where the service member or
47 former service member is being treated, including living, travel and

1 housing expenses. Payments may be payable in monthly installments as long
2 as the person is hospitalized or receiving medical care or rehabilitation
3 services as authorized by military or veterans' medical personnel.

4 3. An immediate family member, service member or former service
5 member may apply for:

6 (a) Living expenses.

7 (b) Other appropriate expenses as determined by the pre-9/11
8 military family relief advisory committee.

9 K. The director may allocate up to ten percent of the donations
10 received for the actual reasonable costs of administering the subaccounts
11 and the financial assistance program under this section, including the
12 hiring of an employee to process applications and provide support to the
13 committee. The department shall provide reasonable office space and other
14 necessary resources for the employee.

15 L. The director shall receive private donations for deposit in the
16 subaccounts and issue receipts to the donors. A donor shall designate the
17 subaccount in which the donor wishes the donation to be deposited as
18 follows:

19 1. One hundred percent of the donation to be deposited in the
20 pre-9/11 veterans subaccount.

21 2. One hundred percent of the donation to be deposited in the
22 post-9/11 veterans subaccount.

23 3. Fifty percent of the donation to be deposited in the pre-9/11
24 veterans subaccount and fifty percent of the donation to be deposited in
25 the post-9/11 veterans subaccount.

26 M. Private donations may qualify for the purposes of income tax
27 credits under section 43-1086. The director may receive donations in any
28 amount, but donations that qualify for tax credits are subject to the
29 limits prescribed by section 43-1086. Donations to the subaccounts that
30 otherwise qualify under the tax credit limits prescribed by section
31 43-1086 but that exceed a combined total of \$1,000,000 in any calendar
32 year, on a first-come, first-served basis, do not qualify for the income
33 tax credits. The director shall provide the taxpayer a donation receipt,
34 which shall include the taxpayer's full name and address, the last four
35 digits of the taxpayer's social security number and the amount of the
36 donation. The director shall designate on the donation receipt whether
37 the donation qualifies under the limits prescribed by this subsection and
38 section 43-1086. The director shall send a record of receipts that
39 qualify under this subsection to the department of revenue.

40 N. On or before March 31 of each year, the director shall provide
41 for an audit by an independent certified public accountant of the
42 subaccounts and of the aggregate amount authorized by the director for
43 income tax credits under subsection M of this section. The director shall
44 promptly submit a certified copy of the audit to the auditor general. The
45 auditor general may make further audits and examinations as necessary and
46 may take appropriate action relating to the audit or examination pursuant
47 to chapter 7, article 10.1 of this title. If the auditor general does not

1 take further action within thirty days after the audit is filed, the audit
2 is considered to be sufficient. The director shall pay the costs of the
3 certified public accountant and the auditor general from the
4 administration allocation under subsection K of this section.

5 0. For the purposes of this section:

6 1. "Established residency IN THIS STATE" means that a service
7 member has DONE ANY OF THE FOLLOWING:

8 (a) Obtained EITHER a valid ~~Arizona~~ driver license, ~~Arizona~~ OR
9 nonoperating IDENTIFICATION license ISSUED BY THE DEPARTMENT OF
10 TRANSPORTATION PURSUANT TO TITLE 28, CHAPTER 8., ~~Arizona~~

11 (b) REGISTERED A motor vehicle ~~registration or~~ IN THIS STATE
12 PURSUANT TO TITLE 28, CHAPTER 7.

13 (c) RECEIVED A community service organization verification of
14 homeless status and Arizona residency.

15 2. "Continuous physical presence" means that a service member has a
16 documented place of habitation and is living in this state or has
17 community service organization verification of homeless status and
18 continuous physical presence in this state.

19 Sec. 5. Section 41-1970, Arizona Revised Statutes, is amended to
20 read:

21 41-1970. Out-of-school time grant program; fund; report;
22 definitions

23 A. The ~~[out-of-school]~~ [OUT-OF-SCHOOL] time grant program is
24 established in the department to expand out-of-school time ~~child~~ care for
25 SCHOOL-AGE children who are at least five YEARS OF AGE AND ELIGIBLE FOR OR
26 ENROLLED IN KINDERGARTEN and not older than ~~twelve~~ EIGHTEEN years of age
27 and who require ~~child~~ OUT-OF-SCHOOL TIME care either when the children are
28 out-of-school or during periods of time when school instruction is not
29 being conducted.

30 B. The grant program shall:

31 1. Increase the number of eligible pupils with access to ~~child~~
32 OUT-OF-SCHOOL TIME care before school, after school or during periods of
33 time when school instruction is not being conducted.

34 2. Increase access to and the affordability of ~~child~~ OUT-OF-SCHOOL
35 TIME care for children and their families.

36 3. Enable employers to attract and retain a talented workforce.

37 4. Reduce the cost of ~~child~~ OUT-OF-SCHOOL TIME care to
38 participating families ~~by at least two-thirds~~ OR EXPAND OUT-OF-SCHOOL TIME
39 CARE AT NO COST TO PARTICIPATING FAMILIES.

40 C. The department shall do all of the following:

41 1. Develop an annual grant application process.

42 2. Provide grants to assist with the costs of ~~child~~ OUT-OF-SCHOOL
43 TIME care to eligible grantees who participate in the grant program.

44 3. Monitor eligible grantees to ensure grant program and fiscal
45 compliance.

46 4. Develop metrics to measure the success of the grant program.

1 5. Allocate at least thirty percent of grant monies for eligible
2 grantees in rural communities, which may be used in any location in this
3 state if there are insufficient grant applications from rural communities.

4 D. The out-of-school time grant program fund is established
5 consisting of legislative appropriations. The department may not use more
6 than five percent of the monies deposited in the fund to administer the
7 fund. Monies in the fund are continuously appropriated and are exempt
8 from the provisions of section 35-190 relating to lapsing of
9 appropriations.

10 E. On or before August 1, 2026 and each year thereafter, the
11 department shall submit an annual report to the governor, the president of
12 the senate and the speaker of the house of representatives and shall
13 provide a copy of this report to the secretary of state. The report shall
14 include all of the following:

15 1. The total number of children who are served by the out-of-school
16 time grant program, categorized by age of the child and the county where
17 the child is served. The information provided pursuant to this paragraph
18 may not include any information that identifies or can be used to identify
19 a child.

20 2. The locations of programs, categorized by county.

21 3. The number of ~~new and sustained child care slots~~ CHILDREN NEWLY
22 ENROLLED IN OUT-OF-SCHOOL TIME CARE PROGRAMS.

23 F. The department may develop policies and procedures that are
24 necessary to implement this section.

25 G. For the purposes of this section:

26 1. "Eligible grantee" means a nonprofit organization, public school
27 and public or private child care provider that:

28 (a) OPERATES PRIMARILY DURING AFTER SCHOOL, BEFORE SCHOOL OR IN THE
29 SUMMER OR AT TIMES WHEN SCHOOL IS NOT NORMALLY IN SESSION.

30 (b) Has demonstrated experience providing ~~child~~ OUT-OF-SCHOOL TIME
31 care before school, after school or during periods of time when school
32 instruction is not being conducted.

33 (c) SERVES ONLY ELIGIBLE PUPILS.

34 (d) IS ORGANIZED TO PROMOTE EXPANDED CHILDHOOD LEARNING,
35 ENRICHMENT, CHILD AND YOUTH DEVELOPMENT OR EDUCATIONAL, RECREATIONAL OR
36 CHARACTER-BUILDING ACTIVITIES.

37 2. "Eligible pupils" means SCHOOL-AGE children who are at least
38 five YEARS OF AGE AND ELIGIBLE FOR OR ENROLLED IN KINDERGARTEN and not
39 older than ~~twelve~~ EIGHTEEN years of age and who come from a household
40 earning \$150,000 or less per year.

41 Sec. 6. Title 41, chapter 14, article 5, Arizona Revised Statutes,
42 is amended by adding section 41-2023, to read:

43 41-2023. Speech and audition services; rules

44 A. BEGINNING JULY 1, 2027, SUBJECT TO AVAILABLE APPROPRIATIONS, THE
45 DEPARTMENT SHALL CONTRACT WITH LISTENING AND SPOKEN LANGUAGE PROVIDERS IN
46 THIS STATE TO PROVIDE SPEECH AND AUDITION SERVICES TO EARLY INTERVENTION
47 PROGRAMS AND SERVICES TO ELIGIBLE FAMILIES THAT HAVE INFANTS AND TODDLERS

1 WHO ARE DEAF OR HARD OF HEARING. EACH CONTRACTOR SHALL ENSURE THAT THE
2 PROVIDED SERVICES ARE ADMINISTERED BY OR OVERSEEN BY A CERTIFIED AUDITORY
3 VERBAL EDUCATOR OR THERAPIST IN A NATURAL ENVIRONMENT, CLINICAL SETTING,
4 EDUCATIONAL SETTING OR VIRTUAL SETTING.

5 B. THE DEPARTMENT SHALL REFER ELIGIBLE FAMILIES THAT HAVE INFANTS
6 AND TODDLERS WHO ARE DEAF OR HARD OF HEARING TO AT LEAST BOTH OF THE
7 FOLLOWING:

8 1. CONTRACTED LISTENING AND SPOKEN LANGUAGE PROVIDERS.

9 2. THE ARIZONA STATE SCHOOLS FOR THE DEAF AND THE BLIND.

10 C. THE DEPARTMENT MAY ADOPT RULES, POLICIES AND PROCEDURES TO
11 IMPLEMENT THIS SECTION. THE DEPARTMENT MAY USE UP TO TEN PERCENT OF
12 MONIES APPROPRIATED FOR CONTRACTS PRESCRIBED IN SUBSECTION A OF THIS
13 SECTION FOR ADMINISTRATIVE COSTS.

14 Sec. 7. Section 41-3955, Arizona Revised Statutes, is amended to
15 read:

16 41-3955. Housing trust fund; purpose; annual report

17 A. The housing trust fund is established, and the director shall
18 administer the fund. The fund consists of monies from unclaimed property
19 deposited in the fund pursuant to section 44-313, monies transferred
20 pursuant to section 35-751 and investment earnings.

21 B. On notice from the department, the state treasurer shall invest
22 and divest monies in the fund as provided by section 35-313, and monies
23 earned from investment shall be credited to the fund.

24 C. Except as provided in subsection D of this section, fund monies
25 shall be spent on approval of the department for developing projects and
26 programs connected with providing housing opportunities for low and
27 moderate income households and for housing affordability programs. A
28 portion of fund monies shall be used exclusively for housing in rural
29 areas.

30 D. Fund monies may be spent on constructing or renovating
31 facilities and on housing assistance, including support services. Fund
32 monies shall be awarded in the following order of priority for the first
33 four months of each fiscal year:

34 1. STATE MATCHING MONIES FOR VARIOUS FEDERALLY FUNDED PROGRAMS.

35 ~~1.~~ 2. Constructing or renovating emergency shelter facilities or
36 for any operational expenses for emergency shelter services.

37 ~~2.~~ 3. Constructing or renovating transitional housing units.

38 ~~3.~~ 4. Constructing or renovating other types of shelter or housing
39 as determined by the department to best serve the needs of individuals who
40 have been determined to be seriously mentally ill and chronically
41 resistant to treatment.

42 E. For the purposes of subsection C of this section, in approving
43 the expenditure of monies, the director shall give priority to funding
44 projects that provide for operating, constructing or renovating facilities
45 for housing for low-income families and that provide housing and shelter
46 to families that have children.

1 F. After the four-month period prescribed in subsection D of this
2 section, fund monies that have not been awarded or encumbered pursuant to
3 the priority list prescribed in subsection D of this section may be spent
4 based on stakeholder feedback.

5 G. The department shall submit for review by the joint legislative
6 budget committee all programs established by the department and funded by
7 the housing trust fund pursuant to this section.

8 H. The director shall report annually to the legislature on the
9 status of the housing trust fund. The report shall include a summary of
10 facilities for which funding was provided during the preceding fiscal year
11 and shall show the cost and geographic location of each facility and the
12 number of individuals benefiting from the operation, construction or
13 renovation of the facility. The report shall also include the number of
14 individuals who benefit from housing assistance pursuant to subsection D
15 of this section. The report shall be submitted to the president of the
16 senate and the speaker of the house of representatives, and a copy
17 provided to the secretary of state, not later than September 1 of each
18 year.

19 I. Monies in the housing trust fund are exempt from the provisions
20 of section 35-190 relating to lapsing of appropriations.

21 J. An amount not to exceed ten percent of the housing trust fund
22 monies may be appropriated annually by the legislature to the department
23 for administrative costs in providing services relating to the housing
24 trust fund.

25 K. For any construction project financed by the department pursuant
26 to this section, the department shall notify a city, town, county or
27 tribal government that a project is planned for its jurisdiction and,
28 before proceeding, shall seek comment from the governing body of the city,
29 town, county or tribal government or an official authorized by the
30 governing body of the city, town, county or tribal government. The
31 department shall not interfere with or attempt to override the local
32 jurisdiction's planning, zoning or land use regulations.

33 Sec. 8. Section 43-1086, Arizona Revised Statutes, is amended to
34 read:

35 43-1086. Credit for donation to the military family relief
36 fund subaccounts

37 A. For taxable years beginning from and after December 31, 2007
38 through December 31, ~~2026~~ 2031, a credit is allowed against the taxes
39 imposed by this title for cash contributions made by a taxpayer during the
40 taxable year to the pre-9/11 veterans subaccount or post-9/11 veterans
41 subaccount of the military family relief fund established by section
42 41-608.04. The amount of the credit is the lowest of the following
43 amounts, as applicable:

44 1. The total amount of contributions to the pre-9/11 veterans
45 subaccount or post-9/11 veterans subaccount, or both subaccounts, by the
46 taxpayer during the taxable year.

1 2. Two hundred dollars of contributions during the taxable year by
2 a taxpayer filing as a single individual or a head of household.

3 3. Four hundred dollars of contributions during the taxable year by
4 a married couple filing a joint return.

5 4. The taxpayer's tax liability for the taxable year.

6 B. A husband and wife who file separate returns for a taxable year
7 in which they could have filed a joint return may each claim only one-half
8 of the tax credit that would have been allowed on a joint return.

9 Sec. 9. Laws 2008, chapter 243, section 6, as amended by Laws 2012,
10 chapter 281, section 2 and Laws 2018, chapter 199, section 3, is amended
11 to read:

12 Sec. 6. Delayed repeal

13 A. Section 41-608.04, Arizona Revised Statutes, as amended by ~~this~~
14 ~~act~~ LAWS 2018, CHAPTER 199, SECTION 1, is repealed from and after December
15 31, ~~2026~~ 2031.

16 B. Section 43-1086, Arizona Revised Statutes, as amended by ~~this~~
17 ~~act~~ LAWS 2018, CHAPTER 199, SECTION 2, is repealed from and after December
18 31, ~~2026~~ 2031.

19 Sec. 10. Supplemental nutrition assistance program fund;
20 delayed repeal

21 A. The supplemental nutrition assistance program fund is
22 established consisting of monies collected by the department of economic
23 security from federal deposits for supplemental nutrition assistance
24 program administration as authorized by 7 Code of Federal Regulations
25 parts 271 through 285. The department of economic security shall
26 administer the fund. Monies in the fund are continuously appropriated.
27 The department of economic security shall deposit federal monies received
28 for the federal administrative share under the supplemental nutrition
29 assistance program in the fund before expenditure.

30 B. This section is repealed from and after June 30, 2027.

31 Sec. 11. Supplemental nutrition assistance program; error
32 rate; report; delayed repeal

33 A. The department of economic security shall report to the
34 president of the senate, the speaker of the house of representatives and
35 the joint legislative budget committee:

36 1. On a monthly basis, the number of supplemental nutrition
37 assistance program cases, number of program participants and total
38 benefits paid to persons who are categorically eligible for supplemental
39 nutrition assistance pursuant to 7 United States Code section 2014(a).

40 2. Within thirty days after submission of the final month of
41 quality control reviews to the United States department of agriculture
42 food and nutrition service pursuant to 7 Code of Federal Regulations part
43 275, subpart C an estimate of the payment error rate for the completed
44 federal fiscal year 2025-2026 and the number and extent of errors
45 attributable to supplemental nutrition assistance program recipients who
46 are categorically eligible pursuant to 7 United States Code section
47 2014(a).

1 B. This section is repealed from and after June 30, 2027.

2 Sec. 12. Supplemental nutrition assistance program;
3 eligibility evaluations; public posting; delayed
4 repeal; definitions

5 A. To determine or evaluate SNAP eligibility, the department shall:

6 1. Review information that is provided by the Arizona state lottery
7 commission and the department of gaming and review its own data pursuant
8 to 7 Code of Federal Regulations section 272.17 to identify members of
9 eligible households who have substantial lottery or gambling winnings as
10 defined in 7 Code of Federal Regulations section 273.11(r)(2), including
11 online gambling winnings, and shall incorporate the information into
12 eligibility determinations pursuant to 7 Code of Federal Regulations
13 section 273.11(r).

14 2. Review information provided by the department of health services
15 that identifies individuals who have had a change in circumstances that
16 may affect SNAP eligibility.

17 3. Review the department's information as the state wage
18 information collection agency and the agency that administers unemployment
19 insurance benefits to verify eligibility for and the amount of SNAP
20 benefits due to eligible households pursuant to 7 Code of Federal
21 Regulations section 272.8(a)(1).

22 4. Review information provided by the state department of
23 corrections that identifies individuals who have had a change in
24 circumstances that may affect SNAP eligibility.

25 B. The department shall review the following information provided
26 by federal sources to assess a recipient's eligibility for SNAP:

27 1. Earned income information, death master file information,
28 supplemental security income information, beneficiary records, earnings
29 information and pension information that is maintained by the United
30 States social security administration pursuant to 7 Code of Federal
31 Regulations sections 272.8(a)(1)(ii) and 272.14(b).

32 2. Income and employment information that is maintained in the
33 national directory of new hires database pursuant to 7 Code of Federal
34 Regulations section 272.16 and child support enforcement data that is
35 maintained by the United States department of health and human services
36 pursuant to 7 Code of Federal Regulations sections 273.2(f)(1)(xii) and
37 273.9(b)(2)(iii).

38 3. National fleeing felon information that is maintained by the
39 federal bureau of investigation pursuant to 7 Code of Federal Regulations
40 section 273.11(n).

41 C. If the department receives reliable information that identifies
42 an individual who is enrolled in SNAP and that indicates a change in
43 circumstances that may affect that individual's SNAP eligibility, the
44 department shall review the individual's case pursuant to 7 Code of
45 Federal Regulations section 273.12(c).

1 D. The department may not rely solely on self-attestation to
2 confirm residency for SNAP eligibility except in unusual circumstances as
3 set forth in federal law.

4 E. This section is repealed from and after June 30, 2027.

5 F. For the purposes of this section:

6 1. "Department" means the department of economic security.

7 2. "SNAP" means the supplemental nutrition assistance program.

8 Sec. 13. Supplemental nutrition assistance program; report

9 On or before June 30, 2027, the department of economic security
10 shall submit a report to the president of the senate, the speaker of the
11 house of representatives and the joint legislative budget committee that
12 details the department's efforts to improve the quality and timeliness of
13 eligibility determinations for the supplemental nutrition assistance
14 program, including specific goals for, actions taken in and barriers faced
15 during the reporting period.

16 Sec. 14. Electronic benefit transfer cards; spending report;
17 delayed repeal

18 A. In the spending report of the supplemental nutrition assistance
19 program and temporary assistance for needy families benefit required by
20 section 46-297.02, Arizona Revised Statutes, the department of economic
21 security shall include all of the following:

22 1. The number of supplemental nutrition assistance program cases
23 that were investigated for intentional program violations or fraud.

24 2. The number of supplemental nutrition assistance program cases
25 that were referred to the attorney general's office for prosecution.

26 3. The amounts of improper payments and expenditures.

27 4. The amount of monies recovered.

28 5. The amount of monies spent for improper payments and ineligible
29 recipients as a percentage of cases that were investigated and reviewed.

30 B. This section is repealed from and after June 30, 2027.

31 Sec. 15. Department of economic security; drug testing; TANF
32 cash benefits recipients

33 During fiscal year 2026-2027, the department of economic security
34 shall screen and test each adult recipient who is otherwise eligible for
35 temporary assistance for needy families cash benefits and who the
36 department has reasonable cause to believe engages in the illegal use of
37 controlled substances. Any recipient who tests positive for the use of a
38 controlled substance that was not prescribed for the recipient by a
39 licensed health care provider is ineligible to receive benefits for a
40 period of one year.

41 <<Sec. 16. Out-of-school time grant program; rural
42 communities; use of monies; delayed repeal

43 [A. Grant monies allocated pursuant to section 41-1970, subsection
44 C, paragraph 5, Arizona Revised Statutes, may be used to support
45 partnerships between school districts and nonprofit organizations with a
46 history of offering out-of-school time care services to eligible pupils
47 for the purposes of capital expansion, facility improvements.

1 construction, renovation and related capital expenditures on public
2 buildings with the intent to expand out-of-school time care opportunities
3 for rural communities.

4 B. This section is repealed from and after June 30, 2027.]>>

5 Sec. 17. Supplemental early childhood listening and spoken
6 language services; memorandum of understanding;
7 contracts; appropriation; transfer

8 On or before November 1, 2026, the Arizona state schools for the
9 deaf and the blind shall transfer existing contracts for supplemental
10 early childhood listening and spoken language services to the department
11 of economic security. The Arizona state schools for the deaf and the
12 blind and the department of economic security shall develop a memorandum
13 of understanding that outlines the transfer of the contracts to ensure
14 that families receiving listening and spoken language services have no
15 lapse in those services. The Arizona state schools for the deaf and the
16 blind shall transfer the remaining balance of the fiscal year 2026-2027
17 appropriation for supplemental early childhood listening and spoken
18 language services, after all invoices have been paid to contractors, to
19 the department of economic security.

20 Sec. 18. Succession

21 A. As provided in section 41-2023, Arizona Revised Statutes, as
22 added by this act, the department of economic security succeeds to the
23 authority, powers, duties and responsibilities of the Arizona state
24 schools for the deaf and the blind relating to speech and audition
25 services.

26 B. On or before November 1, 2026, all contracts in process of the
27 Arizona state schools for the deaf and the blind relating to supplemental
28 early childhood listening and spoken language services are transferred to
29 and retain the same status with the department of economic security.

30 Enroll and engross to conform

31 Amend title to conform

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